

2016 SCC OnLine All 1150

In the High Court of Allahabad
(BEFORE TARUN AGARWALA AND SIDDHARTHA VARMA, JJ.)

M/s. Madhuvan Properties (P) Ltd. Petitioner

v.

Pashchimanchal Vidyut Vitran Nigam Limited and
Another Respondents

Counsel for Petitioner:- Mayank Kumar Agrawal

Counsel for Respondent:- Chandan Agarwal

Writ - C No. - 60839 of 2016

Decided on December 22, 2016

1. Heard Sri. Shashi Nandan, learned senior counsel assisted by Sri. Mayank Kumar Agarwal, learned counsel for the petitioner and Sri. Anshul Shinghal, Advocate holding brief Sri. Chandan Agarwal, learned counsel for the respondent-Electricity Department.

2. An inspection was done in the petitioner's premises on the 15th of September 2016. During the course of the inspection it was found that the meter was carbonized and the meter was required to be tested. Subsequently, the meter was tested by the Memory Recording Instrument (MRI), based on which the department came to the conclusion that the meter was running slow and only 50% of the energy consumed was being recorded.

3. Based on this test, a notice dated 25.10.2016 was issued by which the respondent directed the petitioner to pay a sum of Rs. 1,03,69,390/- towards electricity dues for the period 3.11.2012 to 15.09.2016 i.e. till the date of inspection.

4. The petitioner being aggrieved by the said demand has filed the present writ petition and contends that after the filing of the writ petition his electricity was disconnected on 20.12.2016.

5. Clause 5.6 of the Electricity Supply Code deals with defective meters. The testing of the meter is required to be done in the presence of the petitioner. Apparently, the same was not done. Further, opportunity is required to be given to the petitioner to file his objection, if any. We also find from Section 5.6(c)(ii) that difference of the energy consumed can only be charged for the previous three months and the consumer could also give an option to pay the amount in instalments.

6. In the instant case, prima facie we find that recovery for more than two and a half years is being made. This could not be done. Matter requires consideration.

7. Sri. Chandan Agarwal, learned counsel for the respondent will file a counter affidavit within three weeks.

8. List for admission thereafter.

9. In the meanwhile, the petitioner will deposit a sum of Rs. 15 lakh. Upon such a deposit being made, the electricity connection will be restored within 48 hours. This deposit will be subject to the result of the writ petition. If the amount is deposited the balance amount will not be recovered during the pendency of the petition.

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